

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, AUGUST 6, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court’s final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, AUGUST 5, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court’s website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0091231 MENDELOWITZ, STEVEN v. ARMANI FINANCIAL

Plaintiff’s Motion for Fees and Additional Costs

Plaintiff’s motion is granted.

Civil Code section 1780, subdivision (e) provides “[t]he court shall award court costs and attorney’s fees to a prevailing plaintiff in litigation filed pursuant to this section.” (Civ. Code, § 1780., subd. (e).) The statute does not define “prevailing party” so “the court should adopt a pragmatic approach, determining prevailing party status based on which party succeeded on a practical level. . . . Under that approach, the court exercises its discretion to determine the prevailing party by analyzing which party realized its litigation objectives.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 150.)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.

Here, plaintiff is the prevailing party because he achieved his litigation objectives of prevailing on his causes of action against defendant Armani Financial Group, Inc.

Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’ ” ” ” ”

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit 1 to the declaration of Kasra Sadr. The court observes instances where the attorneys and paralegal have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 9.5 hours are reasonable for Kasra Sadr, 5.6 hours are reasonable for Nima Heydari, and 2.2 hours are reasonable for Liz Peralta.

The court must next address whether the requests for \$650 per hour by Kasra Sadr, \$500 for Nima Heydari, and \$135 per hour by Liz Peralta are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Kasra Sadr, \$300 for Nima Heydari, and \$135 per hour by Liz Peralta are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff's motion is granted in the reduced amount of \$5,302.00 for attorney's fees and costs in the amount of \$315.00 for a total amount of \$5,617.00.

2. M-CV-0096170 MULLER, ANDRES v. MACRAE, WESTON

The motion for preliminary injunction is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0097944 DAY, BLISS v. MAIA, TAYLOR

Defendant's Demurrer to Complaint

Defendant demurs to plaintiff's verified complaint on the grounds the complaint does not allege facts sufficient to state an unlawful detainer cause of action and is uncertain. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is "uncertain" if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

Code of Civil Procedure section 1161, subdivision (1) provides

When the tenant continues in possession, in person or by subtenant, of the property, or any part thereof, after the expiration of the term for which it is let to the tenant; provided the expiration is of a nondefault nature however brought about without the permission of the landlord . . . has been lawfully terminated or the time fixed for occupancy by the agreement between the parties has expired; but nothing in this subdivision shall be construed as preventing the removal of the occupant in any other lawful manner; but in